



U.S. Department
of Transportation

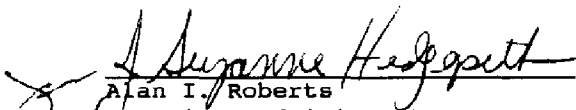
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10246 (EXTENSION)
ORIGINAL December 1, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10246 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DOT 28993

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Ciba-Geigy Corporation
Greensboro, NC

July 28, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DEC -1 1989

DOT-E 10246

1. Ciba-Geigy Corporation, Ardsley, New York, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a class B poison for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a class B poison of low toxicity in a packaging not authorized in 49 CFR, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from Ciba-Geigy Corporation dated August 31, September 5 and October 25, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). 26% solution of methidathion in xylene; classed as class B poison.

4. PROPER SHIPPING NAME (49 CFR 172.101). Organophosphorus pesticide, liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.359.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a rotationally molded polyethylene tank constructed of Phillips TR-938 resin. The polyethylene tank shall be as shown on Snyder Industries Drawing No. D-1310 dated July 20, 1987 on file with the Office of Hazardous Materials Transportation (OHMT). The wall thickness at any point on the tank shall be at least 0.175 inches. The total volumetric capacity of the tank is 140 gallons, but due to the configuration, the normal overflow capacity is 117 gallons and in use tank may not be filled to more than 110 gallons. The tank shall be equipped with a pump which is located in a well in the top of the tank and protected from mechanical shock and damage. The opening in the tank to which the pump is attached shall be equipped with a self-closing valve so that if the pump is accidentally knocked off, the contents of the tank will remain intact.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. Tanks shipped under this exemption shall conform with 49 CFR 173.24(d).

c. Tanks shall be capable of passing:

i. 6.5 foot drop test at 80±5°F when containing 110 gallons of water.

ii. 4 foot drop test at 0±5°F when containing 110 gallons of antifreeze mixture.

iii. Combined hydrostatic and pneumatic pressure test of 15 psig maintained for 5 minutes.

iv. Vibration test specified in 49 CFR 178.19.

v. IZOD impact test at $70 \pm 5^\circ\text{F}$ of 0.45 ft-lb.

vi. IZOD impact test at $0 \pm 5^\circ\text{F}$ of 0.31 ft-lb.

vii. Static load test - both vertical and lateral orientation - 8000lb - maximum permitted deflection is 4 inches.

d. Each tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10246."

9. REPORTING REQUIREMENTS. Any incident involving loss of contents or packaging failure must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. December 1, 1991.

Issued at Washington, DC



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

DEC -1 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA